

24STCV33572 24STCV33572

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-07-29

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Case Number: 24STCV33572 Hearing Date: July 29, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 309

TENTATIVE RULING

ARTISHA HICKMAN

vs.

THE MICHAELS ORGANIZATION, LLC et al.

Case

No.: 24STCV33572

Hearing Date: July 29, 2026

Plaintiff's

motion to quash is DENIED.

On

12/19/2024, Plaintiff Artisha Hickman (Plaintiff) initiated this action against the Michaels Organization, LLC, Javier Gomez, and Arrendondo. On 1/2/2025, Plaintiff filed a first amended complaint (FAC), alleging: (1) discrimination; (2) harassment; (3) retaliation; (4) failure to prevent; (5) failure to

participate in good faith interactive process; (6) failure to provide reasonable accommodation; (7) retaliation; (8) retaliation; (9) wrongful termination; (10) defamation; (11) defamation; (12) intentional infliction of emotional distress; (13) violation of the California Family Rights Act; and (14) declaratory judgment.

On

4/16/2026, Plaintiff moved to quash and for a protective order.

Discussion

Plaintiff

seeks to quash for a protective order in relation to the following discovery served by Defendant: 1) Redacted copy of any and all settlement agreements involving Artisha Hickman from attorney/law offices, D. Wayne Leech APC; and 2) Any and all documents reflecting a settlement payment was cleared and/or cashed by Artisha Hickman from attorney/law offices, D. Wayne Leech APC.

Courts

recognize strong public policy interests in maintaining the confidentiality of settlement agreements and encouraging settlements. (*Monster Energy Co. v. Schechter* (2019) 7 Cal.5th 781) Courts typically discourage discovery, or even testimony, on underlying facts of a settlement may discourage the process, thus violating public policy. (*Tower Acton Holdings v. Los Angeles County Waterworks Dist. No. 37* (2002) 105 Cal.App.4th 590.) When a party's subpoena requests for personal financial records, such as settlement payment information, the opposing party can invoke privacy protections to prevent access to said documentation. (*County of Los Angeles v. Superior Court* (2021) 65 Cal.App.5th 621.)

Here,

Plaintiff argues that Defendant's contention that documents from Plaintiff's prior counsel related to an unrelated settlement agreement "may lead to admissible evidence relating to damages" is insufficiently specific.

The Court

disagrees.

First,

Plaintiff argues that Defendant already had an opportunity to depose her as to

questions of damages. However, in opposition, Defendant indicates that it requested these records because they are relevant to the credibility of Plaintiff to use for impeachment purposes. As described by Defendant,

During

discovery, The Michaels Organization, LLC ("Defendant") propounded Judicial Council Form Interrogatory No. 209.1 seeking information on any other employment lawsuits Plaintiff filed in the past 10 years. Plaintiff stated, under the penalty of perjury, that she did not file any employment lawsuits in the past 10 years. In preparation for Plaintiff's deposition, Defendant uncovered Plaintiff's wrongful termination lawsuit filed in 2020. At deposition, Plaintiff repeatedly denied a prior lawsuit. When shown the lawsuit, Plaintiff denied knowing the attorney identified as her counsel and testified that the lawsuit was filed without her consent or knowledge. At the conclusion of the deposition, Defendant served subpoenas on both counsel to the 2020 lawsuit. After the deposition, and after the subpoenas were served, Plaintiff amended her discovery responses from a "no" to a "yes" regarding prior employment lawsuits. She also amended her deposition testimony from a "no" to an "I don't remember" regarding prior employment lawsuits. In the end, Plaintiff has responded under oath that she did not file another employment lawsuit in the past 10 years, that she did file another employment lawsuit in the past 10 years, and that she does not remember whether she filed another employment lawsuit.

(Opp.,
2: 7-20.)

Thus,

the Court agrees that the records are directly relevant to the credibility of Plaintiff and relevant for impeachment purposes.

Crucially,

Defendant's subpoena request is narrowly tailored to only seek the specific unredacted portions: (1) the name of the document, (2) the description of the case that was at issue and/or settled, (3) the parties involved in the case that was at issue, and (4) Plaintiff's signature on the settlement agreement.

This

information is not subject to attorney client privilege, attorney work product, or disclosure of the substantive terms of the settlement agreement.

Based

on the foregoing, Plaintiff's motion to quash is denied.

It is so ordered.

Dated: July

, 2026

Hon. Jon R.

Takasugi

Judge of the

Superior Court

Parties who intend to submit on this tentative must

send an email to the court at

by 4 p.m. the day prior as directed by the instructions provided on the court

website at www.lacourt.org. If a party submits

on the tentative, the party's email must include the case number and must

identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this

tentative as the final order. If the department

does not receive an email indicating the parties are submitting on the

tentative and there are no appearances at the hearing, the motion may be placed

off calendar. For more information, please contact the court clerk at (213)

633-0517.